PAKISTAN STUDIES (PAK301)

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TABLE OF CONTENTS:

LECTURE 1 4
IDEOLOGY OF PAKISTAN 4
LECTURE 2 7
IDEOLOGY OF PAKISTAN IN THE LIGHT OF STATEMENTS OF QUAID-I-AZAM AND ALLAMA IQBAL 7
LECTURE 3 9
THE ALIGARH MOVEMENT 9
LECTURE 4 11
SIR SYED AHMAD KHAN AND HIS CONTRIBUTIONS 11
LECTURE 5 13
MAJOR POLITICAL DEVELOPMENTS 1857-1918 13
LECTURE 6 16
THE KHILAFAT MOVEMENT 16
LECTURE 7 18
MUSLIM POLITICS IN BRITISH INDIA: 1924-1935 18
LECTURE 8 21
ALLAMA IQBAL'S PRESIDENTIAL ADDRESS DECEMBER 1930 21
LECTURE 9 23
MUSLIM POLITICS AND CHAUDHRY RAHMAT ALI 23
LECTURE 10 24
THE CONGRESS MINISTRIES-- POLICIES TOWARDS MUSLIMS 24
LECTURE 11 26
THE LAHORE RESOLUTION, 1940 26
LECTURE 12 28
MAJOR POLITICAL DEVELOPMENTS IN 1945-46 28
LECTURE 13 31
TOWARDS INDEPENDENCE, 1947 31
LECTURE 14 33
CONSTITUTIONAL DEVELOPMENT IN BRITISH INDIA 33
LECTURE 15 37
THE PROBLEMS OF THE NEW STATE 37
LECTURE 16 39
THE OBJECTIVES RESOLUTION (1949) 39
LECTURE 17 41
CONSTITUTIONAL ISSUES 41
LECTURE 18 44
CONSTITUTION MAKING (1947-56) 44

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LECTURE 19 46
THE 1956 CONSTITUTION 46
LECTURE 20 48
THE 1962 CONSTITUTION 48
LECTURE 21 50
THE 1973 CONSTITUTION 50
LECTURE 22 52
POLITICAL HISTORY 52
LECTURE 23 54
POLITICAL HISTORY (1972-2003) 54
LECTURE 24 57
GEOGRAPHY, LAND, BOUNDARIES AND NEIGHBORHOODS 57
LECTURE 25 60
NATURAL RESOURCES, AGRICULTURE 60
LECTURE 26 63
INDUSTRIAL DEVELOPMENT 63
LECTURE 27 65
EDUCATION IN PAKISTAN 65
LECTURE 28 68
FOREIGN POLICY OF PAKISTAN 68
LECTURE 29 71
PAKISTAN AND THE MUSLIM WORLD 71
LECTURE 30 73
COURSE REVIEW 73

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Lecture 1

Ideology of Pakistan

Ideology is a set of beliefs, values and ideals of a group and a nation. It is deeply ingrained in the social consciousness of the people. It is a set of principles, a framework of action and guidance system that gives order and meaning to life and human action.

Ideology emphasizes on some particular principles, ideals and blueprint for the future. It is a review of the existing political, social and economic arrangements that create consciousness based on its principles. It legitimizes or delegitimizes certain actions and philosophies. Ideology gives nation a direction and worldview and its implementation is the responsibility of the concerned people.

Ideology of Pakistan

The ideology of Pakistan took shape through an evolutionary process. Historical experience provided the base; Allama Iqbal gave it a philosophical explanation; Quaid-i-Azam translated it into a political reality; and the Constituent Assembly of Pakistan, by passing Objectives Resolution in March 1949, gave it legal sanction. It was due to the realization of the Muslims of South Asia that they are different from the Hindus that they demanded separate electorates. However when they realized that their future in a 'Democratic India' dominated by Hindu majority was not safe, they changed their demand to a separate state.

The ideology of Pakistan stemmed from the instinct of the Muslim community of South Asia to maintain their individuality in the Hindu society. The Muslims believed that Islam and Hinduism are not only two religions, but are two social orders that produced two distinct cultures. There is no compatibility between the two. A deep study of the history of this land proves that the differences between Hindus and Muslims are not confined to the struggle for political supremacy but are also manifested in the clash of two social orders. Despite living together for more than one thousand years, they continue to develop different cultures and traditions. Their eating habits, music, architecture and script, all are poles apart.

The basis of the Muslim nationhood was neither territorial nor racial or linguistic or ethnic rather they were a nation because they belonged to the same faith, Islam. They demanded that the areas where they were in majority should be constituted into a sovereign state, wherein they could order their lives in accordance with the teachings of Holy Quran and Sunnah of Holy Prophet (PBUH).

Evolution of 'Two Nation Theory'

Concept of Muslims as a Nation developed before the establishment of Pakistan. Pakistan was the product of this concept of nationhood rather than Pakistan creating a concept of nationhood. Retrospectively the Muslim nationalism emerged with the advent of Islam that introduced new principles pertinent to every sphere of life. It pledged the redemption of the humankind establishing a benign society based on Qur'anic teachings. The beginning of the Muslim nationalism in the Sub-Continent may be attributed to the first Indian who accepted Islam. The Arab traders had introduced the new religion, Islam, in the Indian coastal areas. Muhammad bin Qasim was the first Muslim invader who conquered some part of India and after that, Mahmud of Ghazna launched 17 attacks and opened the gate to preach Islam. The Muslim sufi (saints) like Ali Hejveri, Miran Hussain Zanjani etc. entered Sub-Continent. They, rejecting the vices in the Indian society, presented the pure practical picture of the teachings of Islam and got huge conversions. Qutub-ud-Din Aibuk permanently established Muslim dynasty in India that followed Sultanate and Mughal dynasties. Thus a strong Muslim community had emerged in India who had its own way of life, traditions, heroes, history and culture. Islam could not be absorbed in Hinduism. Deen-e-Ilahi, Bakhti movements, etc. created reaction amongst the Muslim ulama to preserve the pure Islamic character and save it from external onslaught. Role of Sheikh Ahmad Sirhindi and others is noteworthy. Equality and social justice inspired conversions to Islam.

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The British won over the Muslim rulers due to the industrial and scientific developments and modern war strategy. The War of Independence (1857) was a shattering setback to the Indian Muslims who were held responsible for the rebellion by the British. The Muslims were put into the backwardness with the help of Hindus. This was one of the outstanding motivations that paved the way to declare the separate identity of nationalism, the Muslim nationalism. The Muslim scholars sought to reform the teaching of Islamic law and to promote its application in a Muslim society. The prominent name among them is Sir Syed Ahmad Khan (1817-98) who awakened and guided his community well in time. His educational drive, the Ali-Garh movement, proved to be the best means of social mobility for the Muslim gentry under colonial rule.

In 1885 the Indian National Congress was founded to indicate the beginning of the Indian nationalist movement under the British. The Congress worked and helped the British rule. Sir Syed advised the Muslims not to join it because, he thought, the Muslims were not in position to involve into the anti-government activities. It has been argued that Sir Syed's fear of Hindu domination sowed the seeds for the "Two Nations Theory" later espoused by the All-India Muslim League, founded in 1906 and led to its demand for a separate state for the Muslims of India. Sir Syed argued that modern education and non-political activities might be the key to Muslim advancement. The Ali-Garh movement produced educated leadership who could protect the Muslims' rights on the Western political lines.

All India Muslim League had been founded in Dhaka to promote loyalty to the British and to protect and advance the political rights and interests of the Muslims of India. Thus the concept of 'separate electorates' was put forward to dawn a new day for the Indian Muslims.

The Two-Nation Theory served as the basis of demand for Pakistan by the Muslims in British India. There are two major nations in British India. The Muslims are not a community but a nation with a distinctive history, heritage, culture, civilization, and future aspirations.

The Muslims wanted to preserve and protect their distinct identity and advance their interests in India. They wanted to order their lives in accordance with their ideals and philosophy of life without being overwhelmed by an unsympathetic majority.

Initially, they demanded safeguards, constitutional guarantees and a federal system of government with powers to the provinces for protection and advancement of their heritage, identity and interests. Later, they demanded a separate state when neither the British nor the Hindu majority community was willing to offer those guarantees and safeguards.

Hindi-Urdu Controversy

Hindu revivalist movements turned more against the Muslims. Hindu nationalism was rival to the Muslim nationalism. The Indian nationalism forced Muslims to organize themselves politically to defend their interests effectively. After 1857, Hindi-Urdu Controversy was the major assault by the Hindus on Muslim heritage and legacy of the great Muslim Empire. Hindus were biased against Urdu as it was the Muslims' language. They demanded Hindi as the official language replacing Urdu. There were demonstrations against Urdu by the Hindus in Banaras in 1867. It was the start of the Hindi-Urdu controversy. On the very issue, Sir Syed foretold about the unstable future of Hindu-Muslim unity. Hindus struggled vigorously to replace Urdu by Hindi in the offices. This enhanced the importance of the sense of Muslim separatism.

The Muslim nationalism is manifested with the sublime principles to implement like:

1. Rule of Law, socio-economic justice, equity and fair play.
2. Equality of opportunity to all citizens irrespective of caste, sect, religion or region.
3. Religious and Cultural tolerance.
4. Respect for human dignity and rights.

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5. Protection of the rights and interests of non-Muslims and freedom to practice their beliefs and religions.

These principles are enshrined in the constitutions. We ought to work towards realization of these goals in reality and create institutions and processes that reflect these principles and values.

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Lecture 2

Ideology of Pakistan in the Light of Statements of QUAID-I-AZAM and ALLAMA IQBAL

The Development of Muslim Identity and Two-Nation Theory and Quaid-i-Azam and Allama Iqbal

The sense of nationhood developed among the Muslims before the establishment of Pakistan. Their goal was mostly to protect and promote their identity and interests and shape their lives in accord with their ideals and philosophy of life without being overwhelmed by an unsympathetic majority. They adopted the strategy to get constitutional safeguards from the British against the cruel majority of Hindus but because of the antagonistic treatment from the rivals they set the goal of a separate state. Islam had central place to their further developments.

The role of leadership is very important to put nation on the way. A good leadership infuses the qualities of awareness, consciousness, mobilization, sense of direction, and defense against the adversaries. The Muslims were lucky having such competent leadership.

Muhammad Ali JINNAH

M. A. Jinnah was a history-making leader who changed the course of history. He possessed a visionary leadership, commitment to the cause and political mobilization capacity. He was a Charismatic Leader in the real sense of the meaning.

ROLE OF JINNAH

Jinnah played a decisive role in articulating the Muslim demands and pursuing these faced strong opposition from the Hindus and the British. He started his political career in 1906 by joining the Indian National Congress. He was elected to the Legislative Council in 1909 and in 1913 he also joined the All India Muslim League (AIML). Now he was member of both the political parties. Having disagreement with Gandhi on the issue of Swaraj (self-rule), complete freedom from the British and on using extra-constitutional means, Jinnah resigned from the Congress in 1920.

His early efforts to promote Hindu-Muslim unity were materialized when THE LUCKNOW PACT (1916) was signed. The Hindus accepted the Muslim demands:

- Separate Electorate
- One-third Seats in Central Legislature
- protection of minority rights

In the Nehru Report, the accepted Muslim rights were ignored. Jinnah retaliated forcefully by presenting 14 Points in 1929. He defined Muslim identity and mobilized them with reference to Islam and convinced others that Muslims are different from the Hindus and the Congress. Islamic principles, concepts and symbols surfaced in his speeches and statements.

Jinnah used the term NATION for the Muslims of India in Feb 1935 (Legislative Assembly). He argued that the combination of religion, culture, race, arts, music and so forth make a minority a SEPARATE ENTITY. In March 1936 Bombay, he stated that the Muslims could arrive at a settlement with Hindus as TWO Nations. In 1937, he asserted that there is also a third party in India, the Muslims. In 1939, he roared that the Muslims and Hindus are two nations and they are going to live as a nation and playing part as a nation:

> **We are a nation with our own distinctive culture and civilization, language and literature, names and nomenclature, sense of values and proportion, legal laws and moral code, custom and calendar, history and tradition, aptitudes and ambitions; in short, we have our own distinctive outlook on life and of life. By all cannons of international law, we are a nation.**

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Speeches and statements: 1940-47
Jinnah believed in the force of Islam as he said that Islam is a dynamic force that can unite the Muslims. It can help to overcome the present crisis. It's a source of inspiration and guidance providing ethical foundation, a framework, social order and civilization.

Guidance & inspiration for constitution-making and Governance
He also talked of the modern notions of state, constitution, civil and political rights and democracy. He assured that constitution of Pakistan would be framed by the elected assembly.

Modern democratic and Islamic State
He gave assurance of equality of all citizens and rights and freedom to religious minorities in the new state.

ALLAMA IQBAL: POET AND PHILOSOPHER

VISION OF A SEPARATE MUSLIM STATE

Men like Allama Iqbal are born but in centuries. He was conscious of significance of Islam in lives of the Muslims. His first public appearance was in 1899 at the annual session of Anjuman Himayat-i-Islam in Lahore when he presented the poem, Nala-i-Yatim.

At initial stages Dr Iqbal was a nationalist by ideas and his poetry contained verses like Tarana-i-Hind. His poetry was a critique of the existing societal conditions. Being educated from Europe, he knew all weak aspects of the Western culture. He criticized capitalism, materialism and lack of spiritualism.

IQBAL- Focus on the conditions of the Indian Muslims

Islam can salvage the Muslims
Islam has always saved Muslim

Islam is a living and dynamic ideology that can meet modern challenges

Islam to help them to overcome their internal discord and enable them to meet external challenges

With spiritualism based derived from Islam Ijtehad and Reinterpretation

(READ: Reconstruction of Religious Thought in Islam)

Address to the Muslim League Session, Allahabad, December 1930

I would like to see the Punjab, NWFP, Sind, Balochistan amalgamated into a single state as a self government within the British empire or without. This is the final destiny of the Muslims of N.W. India.

(Dr Iqbal's verses may be quoted) web site may also be visited:

http://brain.brain.net.pk/~wisetech/50/bio/quaid.htm
http://brain.brain.net.pk/~wisetech/50/bio/iqbal.htm

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Lecture 3

The Aligarh Movement



The War of Independence 1857 ended in a disaster for the Muslims. The British believed that the Muslims were responsible for the war of 1857 and therefore, they were subjected to ruthless punishment and merciless revenge. The British had always looked upon the Muslims as their enemies because they had ousted them from power. With the war of 1857 this feeling was intensified and every attempt was made to ruin and suppress the Muslims forever. Thus the Mughal rule came to an end and the sub-continent went directly under the British crown.

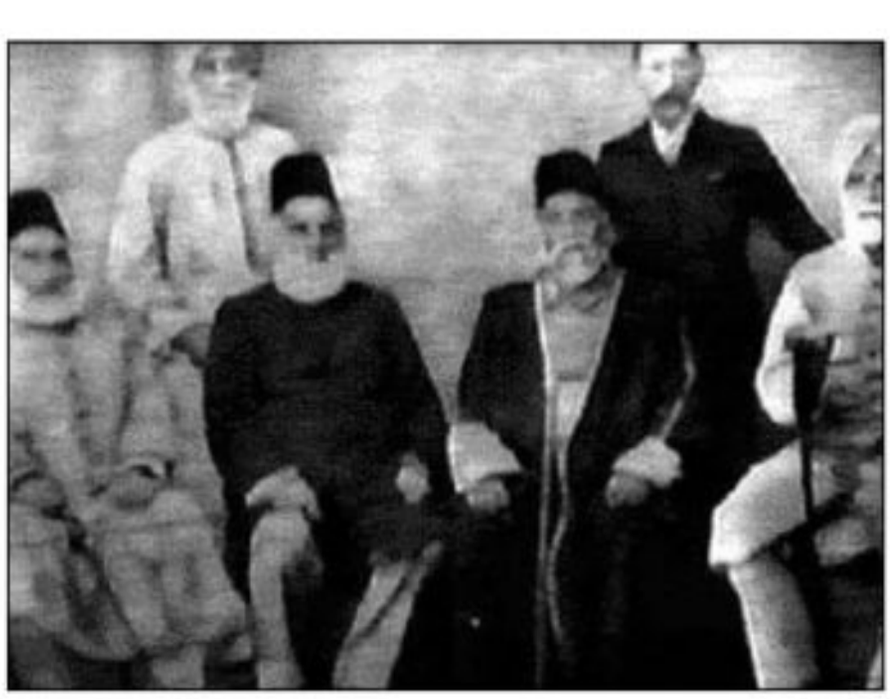


Sir Syed Ahmad Khan made modern education the way to progress

After the Muslim rule, the new rulers, the British, implemented a new educational policy with drastic changes. The policy restricted Arabic, Persian and religious education in schools and made English as the only medium of instruction as well as the official language in 1835. A wrong attitude of everything modern and Western, and disinclination to make use of the opportunities opening under the new regime was created among the Muslims. This tendency, had it continued long, would have proved disastrous for the Muslim community.

Such were the days of despair and despondency when Sir Syed appeared on the horizon of Muslim India to rescue them. Sir Syed had the conviction that regeneration of the Indian Muslims had not at all visualized that mankind had entered a very important phase of its existence, i.e. an era of science and learning which was the source of progress and prosperity for the British. Therefore, modern education became the pivot of his movement for the regeneration of the Indian Muslims, which brought a complete orientation in their lives. He tried to transform Muslim minds from medieval outlook to a modern one.

Hali and Shibli were also associated with the Aligarh Movement.



Sir Syed's first and foremost objective was to modernize the Muslims following the Western cultural values that could create friendly atmosphere for the two communities. He motivated his community to learn the Western philosophy and English literature to get along with the ruling people.
Therefore, in order to fulfill this desire he started the Aligarh movement. He had two immediate objectives in view:

1) To remove the state of tension between the Muslims and the British government, and

2) To induce them to get jobs and other facilities under the new government.

To him, this was the only way for the Muslims to prosper.

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The ideas of Sir Syed may be summed up as following:

1. To create an atmosphere of mutual understanding between the British government and the Muslims
2. To motivate the Muslims to learn Western education
3. To persuade Muslims to abstain from agitational politics

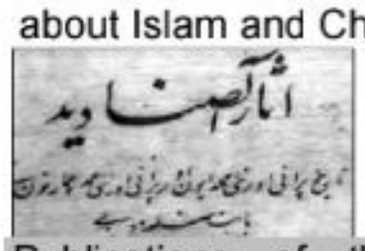
Fortunately, Syed Ahmad Khan was able to attract a number of sincere friends who shared his views and helped him. Among them were well-known figures like Nawab Mohsin ul Mulk, Nawab Viqar ul Mulk, Hali, Shibli, Nazir Ahmad, Chiragh Ali, Mohammad Hayat, and Zakaullah. All these personalities advocated the cause set by Sir Syed Ahmad Khan. Some English professors like Bech, Morison, Raleigh and Arnold also contributed greatly in building up the Aligarh college into a first rate institution.



Syed Ahmad launched his educational movement by setting up Gulshan School at Muradabad - 1859; Victoria School at Gazipur in 1863; Scientific Society for the translation of English works in the native language, Urdu, at Aligarh in 1864; Aligarh Institute Gazette imparting information on history - ancient and modern, science of agriculture, natural sciences, physical sciences and Advanced Mathematics in 1866; Committee Striving for the Educational Progress of Muslims - 1870; Mohammedan Anglo-Oriental School (MAO) at Aligarh in 1875 at the pattern of English public schools and later raised to the level of college in 1877 and university in 1920; Mohammedan Educational Conference (1886), which met every year to take stock of the educational problems of the Muslims and to persuade them to get modern education and abstain from politics; it later became a political mouthpiece of the Indian Muslims and the forerunner of the All India Muslim league.



Besides his prominent role in the educational uplift of the Muslims, Syed Ahmad Khan's writings played important role in popularizing the ideals for which the Aligarh stood. His Risala Asbab-i-Baghawat-i-Hind in 1858; and other writings as Loyal Mohammedans of India; Tabyin-ul-Kalam and Khutbat-i-Ahmadiya rooted out the misunderstandings about Islamic teachings and helped create a cordial relation between the British Government and the Indian Muslims and also helped to remove the misunderstanding about Islam and Christianity.



Publications of the Aligarh Movement

It was this platform from where Syed Ahmad Khan strongly forbade the Muslims to join the Hindu dominated political party, the Indian National Congress. He regretted the Urdu-Hindi controversy initiated by Hindus and predicted that both the nations could no longer live together. He stood for reserved seats for Muslims and also promoted the idea that Hindus and Muslims are two distinct nations, which led to the Two Nation theory.

Syed Ahmad Khan's Aligarh Movement played a significant role to bring about an intellectual revolution among the Indian Muslims. Thus Aligarh Movement succeeded in achieving its major objectives and boosted up the depressed Muslim community to the real status of nation.

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Lecture 4

Sir Syed Ahmad Khan and His Contributions

The great emancipator of the Indian Muslims Sir Syed Ahmad Khan was born at Delhi in 1817. This is the period when the great Mughal Empire was close to a complete collapse. Sir Syed's family had already joined the East India Company and his maternal grandfather served in Iran and Burma under the British government. Sir Syed got interest in English from his maternal family. SM Ikram writes, "For this insight into the affairs of the state and first contacts with Western learning and civilization he was indebted to his maternal grandfather..." (S. M. Ikram, Modern Muslim India, p.18). Sir Syed was very healthy by birth and his grandfather remarked: "A Jat has been born in our family." (Ibid., p. 19) The death of Sir Syed forced him to join the British as head clerk in 1839. The death of his brother made him serious and energetic to face the neuroses of life courageously. Another event that changed him entirely was the War of Independence in 1857. In 1841, he passed examination and became sub-judge. At the eve of the War of Independence he was performing the duties as sub-judge in Bijnore. He established educational institutions and after coming at Aligarh he rejuvenated his aspirations to work for the depressed Muslims of the Subcontinent. He devoted his entire life for this purpose to bring the Muslims close to the British. He died on March 27, 1898 and was buried in Aligarh.

His Services

He took responsibility of the Indian Muslims when they had been thrown in backwardness, depression andn humiliation. The British held them criminal of the War while the Hindus had won the British being anti-Muslim force. In such environment, Sir Syed guided his community to rejoin the life. To Dr Qalb-i-Abid, "Sir Syed Ahmad Khan was among a very few leaders produced by Muslim India, who like Mohammad Ali Jinnah made a tremendous contribution in guiding the destinies of the Indian Muslims." (Dr Q. Abid, Muslim Struggle for Independence, p. 11.)

Sir Syed and Politics

In the political arena, Sir Syed carved numerous successes; he eradicated misunderstandings between the Muslims and the British infused due to the past particular incidents. Awakening among the Muslims about the political ups and downs and co-existence in the presence of other nations in India was another contribution of Sir Syed. He motivated the Muslims to absorb the modern education of the West because this was the very motive of the Western expansion in the world. He visualized the bright future of the Muslims if they engaged themselves in the Western learning.

Sir Syed won the British confidence and cordial relationship by saving their lives during the War of Independence. He utilized this relationship for the betterment of the Muslims. It was a subtle situation because the government had put the War crimes on the Muslim shoulders and assaulted their every aspect of life: "These events were a trauma for the Muslims; ...the methods used by them shocked the civilized world. The detestation of Delhi as a centre of Muslim culture was horrendous; Bahadur Shah Zafar...was exiled to Rangoon; Lt. Hodson shot three Mughal princes and later 24 princes were tried and executed; a vast ocean of blood there was; Some Muslims were shot dead and their dead bodies were thrown into the river Jamna..." (Ibid., p. 14). All Muslims were ousted from land, property and employments that made them third class citizens of India. This created revengeful sentiments among the Muslims who detested British, their culture and civilization. Sir Syed was of the view that British were a civilized, educated, wise and disciplined nation and occupied India with the new war strategy and munitions that could not be matched by the locals and particularly by the Muslims. Therefore at the juncture the Muslims should mould themselves according to the pace of time to avoid more disaster.

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Sir Syed published Loyal Mohammedans of India and Risala Asbab-i-Baghawat-i-Hind that helped both the nations to redress their grievances. In 1885 the Indian National Congress was founded but Sir Syed warned the Muslims from the sinister aspirations of the Hindus. Another factor was that he intended the Muslims to abstain from the politics that could result in friction with the ruling nation.

Urdu-Hindi Controversy

Urdu grew as common language of all the Indians regardless of origin or religion but in 1867 the Benarsi Hindus started campaign to replace Urdu by Hindi. To gain the objectives, they declared numerous organizations, which discouraged Sir Syed who said to Shakespeare that since now both the nations could not live together. Later the followers of Sir Syed tried their level best to save Urdu language. Mohsin ul Mulk was the outstanding person who organized the Muslims in defense of Urdu.

Muslims-as a Nation

Sir Syed used the word 'nation' for the Muslims. Some writers criticize that he declared Hindus and Muslims one nation. But as a matter of fact, he advocated the Hindu-Muslim unity that meant 'the working relationship' between the two nations as once he said: "Hindus and Muslims should try to be of one mind in matters which affected their progress." He favored separate electorate for the Muslims in 1883 saying that the majority would override the interests of the minority. (P. Hardy, pp. 136-37)

United Indian Patriotic Association

In 1888, he set up the Patriotic Association to meet the propaganda of the Congress. Muslims and Hindus joined the Association. It advocated the Muslims' emotions.

Mohammedan Defense Association

In December 1893, Sir Syed founded the Association. Its main purpose was to protect the political, religious and social rights of the Muslims.

Sir Syed was great because he contributed greatly to the Muslim struggle for identity. Otto von Bismarck served the German nation with the help of all government sources but Sir Syed did the same without all this. To Khalid Bin Sayeed, "Many tributes have been paid to Sir Sayyed, particularly by modern educated Muslims for being daring enough to put forward such views in an age which was by no means liberal or tolerant." (Dr Khalid Bin Sayeed, Pakistan, the Formative Phase, p. 17).

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Lecture 5

Major Political Developments 1857-1918

The year 1857 brought decline to the Muslim rule in India. Muslims and Hindus participated in the War of Independence but the British held only Muslims responsible for the rebellion. The Muslims were persecuted ruthlessly and left at the mercy of time. The post war era was disastrous for the Muslims but some personalities emerged on the national scene and played excellent role to guide their people in this critical situation. The Central Mohammedan Association of Justice Amir Ali Syed and the Aligarh movement are very prominent in this regard. Their efforts for revival of the self-identity and political positioning in the Indian society enabled them to face any challenge in the future.

Some important issues have already been discussed in the previous lectures. So a brief reference to events in historical context may be given:

- Decline after the 1857 Uprising
- Sir Syed and his colleagues' efforts for revival
- Removal of misunderstanding between the Muslims and the British
- Educational movement or acquisition of modern knowledge and English
- Hindi-Urdu Controversy was the issue that unearthed the hatred and enmity of Hindu community towards the Muslims.
- Formation of the Congress was a method to incorporate the Muslims in Hinduism. It popularized the agitational politics that Muslims could not afford because they were still recovering the past gaps.
- Hindu Revivalist movements mostly targeted the Muslims that accelerated the pace of widening the gulf between the two nations.

Events Since the Beginning of 20TH Century

1. Partition of Bengal, 1905
2. Simla Deputation, 1906
3. Formation of the Muslim League, 1906
4. Changes in the Goals of the Muslim League, 1913
5. Lucknow Pact, 1916

1: Partition of Bengal: 1905

United Bengal's area covered 189,000 sq. miles with 80 million populations. Dr Abdul Hameed writes in his book, Muslim Separatism in India, that the partition was imperative even if Curzon had not initiated it. A Lt. Governor had problems in looking after the eastern areas. Mainly Muslim suffered because of the rotten administration by the British. Before 1905, many proposals of partition of Bengal had been under consideration but Lord Curzon decided to practicalise this administrative scheme. East Bengal became incidentally a Muslim majority province having 13000000 out of 31000000. West Bengal was a Hindu majority province. Muslims were very happy on the partition as this had enabled them to promote their life conditions. It was rightly an opportunity for compensation. The Muslim community supported it strongly but Hindus retaliated furiously saying it the division of motherland. The Congress joined the anti-partition movement. They started widespread agitation, violence and boycott of foreign goods. The main reason of Hindu protest was that they had loosened grip over the eastern parts.

Annulment of the Partition on 12 December 1911

The British government revoked the partition to avoid trouble on the visit of King George V. The Muslims were disappointed by the government response to the violent strategy of protests adopted by the Hindus.

2: The Simla Deputation 1906

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In fact Simla Deputation was in line with a kind of thinking that was developing amongst the Muslims during that time i.e. they had certain interests and they must stand up to protect their rights and unless they do that that objective would not be achieved. The Simla Deputation of 1906 was the first systematic attempt on the part of the Muslims to present their demands, to the British government and to seek their acceptance. The Simla deputation comprised 35 Muslims from all over India. It was a galaxy of Muslims leaders from all the provinces, from one end of India to the other and it had Muslims of all background. Therefore, when in 1906, this deputation called on the Viceroy, it was the most representative Muslim delegation. This delegation was led by Sir Agha Khan and Nawab Mohsin ul Malik served as a secretary and this delegation met the Viceroy in Simla that was why it was called as Simla Deputation. The memorandum which they presented was a kind of demands which were the uppermost in the minds of the Muslims at that time. The delegation emphasized that the Muslims should not be viewed simply in numerical terms but they should take into account their historical importance and the kind of contribution the Muslims had made to British India and keeping in view that importance they should work towards accommodating their demands. The delegation emphasized that democratic principle should be introduced keeping in view the peculiar conditions and circumstances of India. The diversity, the fact that there different kinds of people living in India and the fact that the Muslims consider themselves to be a separate entity, all these things had to be taken into account because the India was not a homogenous amalgamated or monolithic political identity. It was a political identity comprising diversity, divergence in view, divergence in outlook and when you introduce some kind of system then these realities had to be accommodated. In view of this submission they presented some demands:

- Representation more than their population because of their importance.
- Separate electorate
- Reservations of Muslims seats in government jobs.
- Special share in Municipal or district boards University senates and syndicates
- Muslim representation in Viceroy Executive Council.
- Muslim University at Aligarh.

The Viceroy was sympathetic towards the demands. It encouraged the Muslims to launch struggle for their rights parallel to the Indian National Congress but it required an organized platform.

3: Formation of the Muslim League in Dhaka: December 30, 1906

Time had come to formally organize the Muslims after the success of the Simla Deputation. The Muslim leaders desired to create a permanent political forum. After the meeting of the Mohammedan Educational Conference, the Muslim leaders met to set up the All India Muslim League. Wiqar-ul-Mulk chaired the meeting. Nawab Salimullah proposed Muslim League and Hakim Ajmal Khan and Maulana Zafar Ali Khan seconded.

In the Karachi session Dec. 1907 its constitution was approved and in March 1908 at Aligarh, Agha Khan was formally elected its president.

London Branch: May 1908

Justice Amir Ali Syed organised a branch of Muslim League at London and responded effectively to the misunderstandings and conspiracies of the Hindus against the Muslims.

GOALS:

1. Protection and promotion of political rights and interests of the Muslims.
2. Cooperation with other communities without prejudice to the above goal.
3. Fostering sense of loyalty, among the Muslims, towards the government.

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4: Change in the Goals of the Muslim League 1913

Important developments occurred during the first decade of the 20th century like annulment of the Partition of Bengal and Western aggression towards Muslim countries, Balkan wars, Libya-Italy war, Demolition of the mosque in Kawnpur (1913), etc. weakened Muslim faith in the British. This led to a major drift in the Muslim League's policy. In 1913, the League changed its goals:

- Self government under the British Crown keeping in view the peculiar conditions in India.
- Good relations with other communities' cooperation with any party working for similar goals.

This change brought the ML and Congress closer. In this way the era of cooperation between Hindus and Muslims set in. The role of the Quaid-i-Azam is highly noteworthy to bring the Congress and the Muslim League to the table. He joined the Muslim League in 1913.

5: Lucknow Pact, 1916

The Lucknow pact was the product of Hindu-Muslim unity envisaged by M. A. Jinnah. In December 1915, the ML and Congress met separately in Bombay. Both the parties set up committees for making a scheme for constitutional changes in consultation with other political parties.

Role of the Quaid-i-Azam

Jinnah did a lot to unite the two nations along with the recognition of the rights of Muslims. Meeting of both parties held at Lucknow in 1916. The constitutional proposals were approved:

1. One Third seats for Muslims in the Imperial Legislative Council.
2. Separate Electorate
3. Half members of the Executive Council to be elected by the Imperial Legislative Council.
4. Commissioned ranks of the army for Indians.
5. Expansion of Provincial Legislative Councils.
6. Half members of the Governor's Executive Council be elected by Provincial Legislative Council
7. Weightage to minorities in provinces.

Gains from Muslim Point-of-view

1. Separate Electorate
2. One Third Muslim seats in Central Legislature.
3. Unofficial bill, if opposed by three-fourth members of a community, it will not be passed.

August 20, 1917 Announcement by British Government

Secretary of State Montagu promised for:

1. Greater association of Indian in all branches of government.
2. Responsible government
3. Induction of Indians in the commissioned ranks.

Conclusion:

The historical struggle of the Muslims confirmed their identity. They organized their political party to address the demands. They also got recognition by the Hindus as a separate nation. The British accepted their role in the political domain.

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Lecture 6

The Khilafat Movement

The Khilafat movement was a religio-political movement launched by the Muslims of British India for the retention of the Ottoman Caliphate and for not handing over the control of Muslim holy places to non-Muslims.

Turkey sided with Germany in World War 1. As it began to lose the war, concerns were expressed in India about the future of Turkey. It was a peak period from 1919 to 1922 casting demonstrations, boycott, and other pressure by the two major communities, the Hindus and the Muslims. Being brothers, the Indian Muslims realized their religious duty to help the Muslim country. It was the extra territorial attachments based on Islam. Another factor same to the first was that the Indian Muslims considered Ottoman Caliphate a symbol of unity of the Muslim world as Ummah.

Goals:

1. Ottoman Khilafat should be kept intact.
2. Territorial solidarity of Turkey be preserved.
3. Control of holy the places should not be given to non-Muslims.

Dimensions:

The writings of the Muslim intellectuals provoked the sentiments for the preservation of Khilafat and retention of the Muslims control of the holy places. The Muslims journalism played a vital role to steer the direction of the struggle. Zamindar of Zafar Ali Khan, Comrade and Hamdard of Maulana Muhammad Ali Jauhar, and Al-Hilal of Maulana Abul Kalam Azad etc. were the prominent newspapers and magazines which performed their duties to express their resentment. The Allies imposed humiliating terms on vanquished Turkey.

Protests in India:

All India Khilafat Committee was formed at Bombay in July 1919. The first Khilafat Conference at Delhi in November 1919 was arranged in which the Congress leaders like Gandhi and Nehru participated. In this way, the major political parties joined hands to assault the injustice with the Muslim community. These steps were announced:

- No participation in victory celebrations.
- Boycott of British goods
- Non Cooperation with the Government

The second Khilafat Conference (Amritsar) was held in Dec. 1919. Maulana Muhammad Ali and Shaukat Ali joined the session after being released from prison. In Jan. 1920, M. A. Ansari led a delegation to Viceroy while Maulana M. A. Jauhar to Europe. The Khilafat Committee decided to start non-cooperation in collaboration with the Congress in May 1920.

Rowlett Act, 1919

Rowlett Act was a black law introduced in India. To the law, the government got authority to persecute any Indian and the arrested had no facility of legal assistance and right to appeal just as the 'Lettres de Cachet' in France before the French Revolution. Jinnah resigned from the central legislature as a protest.

Jallianwala Bagh Incident, April 1919

The people gathered in Jallianwala Bagh at Amritsar but General Dyer opened fire to disperse the throng that cast a huge human casualties (379). It is considered one of the great tragedies in India. In 1940, by killing Governor Punjab, Sir Michaal O' Dayer, 'Ram Muhammad Singh Azad' got revenge of the Indian massacre.

The Nagpur Session of the Congress (Dec. 1920) approved non-cooperation with Government but Jinnah opposed and left the Congress because he was against the use of extra-constitutional means of protests.

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Non-Cooperation:

- Return Titles.
- Boycott of courts and educational institutions.
- Resign from jobs.
- Later resign from police and military jobs.
- Refusal to pay taxes.

Khilafat Conference, Karachi, July 1921

In the session the participants expressed their loyalty to Turkish Sultan. They decided to continue the agitation and supported Attaturk to expel foreign forces from Turkey.

Hijrat Movement 1920-21

The Indian ulama (religious leaders) declared India 'Darul Harab.' Darul Harab means the place (country) where Muslims are not allowed to perform their religious practices. In the said situation, the Muslims should migrate to the nearest safe place. The ulama issued verdicts to go to Darul Islam, Afghanistan. There was an impression that King of Afghanistan would welcome them. So the migration took place at large scale. Initially Afghans welcomed them. Later, they closed the border and pushed the migrants back to the Indian territories. It resulted in loss of lives and money. Many died during this mission. Some went to Soviet Union from Afghanistan because they had nothing in India now.

End of the Movement

Moplah Revolt Malabar Coast, near Kalicut

Moplahs were the descendents of the Arab Muslims settled in the Sub-Continent even before the arrival of Muhammad Bin Qasim. In August 1921, they revolted against Hindu landlords whose treatment was very brutal with them. Later this clash changed as Moplahs versus the Police and Hindu. This embittered the Hindu-Muslim relations.

There was an increase in violence day by day and the Chorachori Incident (UP) in February 1922 worsened the situation. The Congress volunteers set a police station on fire and 21 policemen were killed. Gandhi suddenly called off the movement.

Developments in Turkey

In 1922 Attaturk emerged as a national leader and restricted powers of Sultan. Next he was appointed Chief of the state by Grand National Assembly. In March 1924, Khilafat was abolished. This caused a widespread resentment among the Indian Muslims. They sent delegations to Turkey but failed to achieve their objectives.

Conclusions:

1. It was re-affirmation of the reality that religion is a mobilizing force and especially Islam has mobilization capacity to organize masses.
2. It was the movement launched on the basis of extra-territorialism. Later, no such movement but Pan-Islamic sentiments continued.
3. It resulted in the sufferings of the Muslims
4. Hindu-Muslim unity proved short-lived.

Reactivation of the Muslim League and other Muslim organizations to restart their activities as a separate nation was the great outcome.

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Lecture 7

Muslim Politics in British India: 1924-1935

1. Delhi Muslim Proposals
2. Nehru Report
3. Quaid-i-Azam's Fourteen Points
4. Simon Commission
5. Round Table Conferences
6. Constitutional Proposals

Backdrop:
The Khilafat movement brought Hindu-Muslim communities to cooperation. The leaders made the efforts to revive harmony for preparing constitutional proposals.

1: Delhi Muslim Proposals: March 1927

Important Muslim leaders on the initiative of the Quaid met in Delhi to discuss constitutional and political issues. The major demands were:

- Punjab and Bengal: statuary Muslim majorities
- No Weightage in provinces
- Sind to be separated from Bombay
- Constitutional Reforms in NWFP
- One-third seats for Muslims in Central Legislature
- On communal issues, no law will be passed if three-fourth members of the concerned community oppose it.

If these demands are accepted, they will give up 'separate electorate.' Subsequently, the Muslim League was divided in the Punjab, Shafi League and Jinnah League. Sir Muhammad Shafi opposed Jinnah on the issues:

- Separate electorate
- Attitude towards the Simon Commission. Jinnah continued his unremitting efforts to promote Hindu-Muslim unity.

2: The Nehru Report: 1928
The main objective was to constitute proposals for the Indian Constitution. The Congress called All Parties Conference that appointed a 10-member committee in May 1928 under the Chairmanship of Motilal Nehru and Secretary ship of Jawaharlal Nehru.

Recommendations that threatened Muslim interests are:

- No Separate electorate
- No One-third seats for Muslims in Central Assembly
- No reservation of seats for Muslims in Punjab and Bengal. In Hindu- majority provinces, the Muslims may be given seats according to population
- Sind to be made a province if it can bear its expenses. Balochistan, NWFP were accepted to be given constitutional status on certain conditions.

Quaid-i-Azam tried to get amendments in the Report in the All Parties Conference in Calcutta but did not succeed. This is the very moment when Jinnah remarked, "it is parting of the ways." He presented the 14 points as a Muslim leader.

3: Jinnah's Fourteen Points: 1929

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1. Federal system with residuary powers with the provinces
2. Provincial autonomy.
3. Separate electorate for Muslims.
4. Effective representation to minorities in the provinces but the majority should not be reduced to minority
5. One-third representation of Muslims in Central Legislature.
6. One third Muslim representation in cabinets.
7. No changes in the boundaries of the Punjab and Bengal that would adversely affect Muslim majority.
8. Religious freedom to all.
9. No law will be passed if three-fourth elected members of a community declare that it is against their interests.
10. Sind to be made a separate province.
11. Constitutional Reforms in NWFP and Balochistan.
12. Muslim representation in govt. jobs.
13. Constitutional safeguards for Islamic culture and civilization, education, language, personal laws and Muslim institutions. Government should provide financial assistance.
14. No constitutional amendment unless all constituent units of the federation agree to it.

These points reflected the aspirations of every Muslim living in India.

4: The Simon Commission:

The British government sent a commission to seek the opinion of Indians on the future shape of constitutional arrangements. It arrived in India in 1927 and it published the report in 1930. Most political parties boycotted it. It presented its report containing several constitutional proposals:

- Federal system of government with strong centre
- Two Houses.
- Abolition of Dyarchy system in provinces
- More powers to provincial governments.
- Governor not to interfere in day to day affairs.
- Constitutional changes in NWFP

5: Roundtable Conferences: 1930, 1931, and 1932

First Session of the Conference
In the first session, a number of prominent Muslims like M. A. Jinnah, Sir Shafi, Maulana M. A. Jauhar, Zafarullah Khan participated. They emphasized federalism, self-government, safeguards for minorities, separate electorate, preferential representation in central legislature, secure majorities in Punjab and Bengal.

Second Conference
Maulana M. A. Jauhar had died after the first conference. Iqbal, Jinnah and others participated in the second conference. Gandhi represented the Congress. The key issues of the session were 'Federation' and 'Minorities.'

The Communal Award, August 1932

Prime Minister Ramsay MacDonald announced the Communal Award:

1. Separate electorate for all minorities of India.
2. Weightage to minorities
3. No Muslim majorities in Punjab and Bengal as was followed in Lucknow Pact

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4. One third representation for Muslims in Central legislature
5. One fourth representation for Muslims in services
6. Sind to be made a province

Poona Pact, September 1932

The Congress expressed strong reaction against the right of separate electorate to the Indian minorities, especially to low caste Hindus whom Gandhi named Harijan (sons of God). Dissonance in Gandhi is conspicuous that he observed fast unto death on the right to the 'sons of God.' An agreement with low caste to surrender the separate electorate right was concluded to save Gandhi's life.

3rd Roundtable Conference: Nov. 17-Dec. 24 1932

The main issues had been discussed in the first two conferences and now the rest of them were to be discussed. It was poorly attended conference. Quaid did not participate despite living in London. Gandhi did not attend as he had been detained.

The conference brought no change in party positions and widened Hindu-Muslim gulf.

White Paper on Constitutional Proposals: March 1933

The British government issued a small document in the form the White Paper. It included detail of working basis of the Indian constitution with Dyarchy in the centre and full responsible governments in the provinces.

Government of India Act, 1935

Approved by the King: August 1935

Despite these efforts the communal problems could not be settled as satisfactory to the nations living in India particularly the Muslim. Therefore the key issues remained unchanged:

- Hindu Muslim Relations
- Failure to arrive at settlement
- Muslim demands transmuted from safeguarding rights to complete independence---Pakistan.

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Lecture 8

ALLAMA IQBAL's Presidential Address December 1930

Dr Allama Muhammad Iqbal ranks amongst the Muslim intellectuals who left a deep impact on history. He inspired Muslims of the Sub-Continent and beyond. He infused a moving spirit and identity in the Indian Muslims. He presented a framework of their political future and talked how that would help to achieve the goal of Ummah. He presented a vision and dream in his Allahabad Address.

1: Background

The Hindu-Muslim question had great importance and stood crucial to British Indian history after 1857, especially in the 20th century. To Muslims, the key issue remained 'separate identity.' They tried their level best to make the rival nations understand that the Muslims are a separate nation having different culture and civilization, interests and rights. The Two Nations theory could not fascinate the Hindus and the British peoples because they believed in 'territorial nationalism.' The Hindus desired to absorb them in their majority but they could not face the arguments of the Muslim intellectuals. By 1930, Muslims had developed a sense of identity and political demands. Iqbal delivered his Presidential address in this background.

Iqbal's stay in Europe, 1905-08, helped to crystallize his thoughts. He returned to India in 1908 and started work on the roots of Muslim decline and the mechanism to uplift the Muslims. He reminded them to follow the teachings of the Holy Prophet (PBUH) practically as the ideal leader. He emphasized on the ideals, teachings and principles of Islam. He sought salvation through Islam. He was awarded with many prominent social positions:

- Title of Sir was conferred in 1922
- Member Punjab Legislative Council (1927-1930)

He delivered lectures on Islam in Aligarh, Hyderabad and Madras (1928-29). At Allahabad, he presided over the meeting and delivered his famous address.

The Address, December 1930

Iqbal presented a review of the political and social situation of India and solution of the ills befalling India. He evaluated the importance of role of Islam in the lives of Muslims of British India. He said that the European view of duality of religion and state does not apply here in the Indian society. Rejecting the secularism he said, religion is not a totally personal affair.

He explained that Islam offers an ethical order, socio-political structure, legal framework, code of life, culture and civilization. It is a living, dynamic force that has a profound impact on the lives of Indian Muslims. With the force of Islam the scattered and disoriented people have been turned into an organized force.

The Muslims are not willing to submerge their religious individuality. They have lack of trust, fear of domination from Hindus. If the British want any sort of internal harmony it would be impossible unless the communal question is settled. It's historical reality that India is a continent inhabited by diverse people. No political arrangement may be acceptable without recognizing this reality.

- If the Muslims have an opportunity to develop in accordance with their Islamic civilization and tradition, they would be willing to sacrifice their lives for India.
- Federalism cannot succeed without recognizing the national identity of the Muslims.

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- Territorial redistribution of British India on the basis of religion has become a need of time.
- Punjab, NWFP, Sind and Balochistan be amalgamated into a state, self government within the British empire or without it. The formation of such a consolidated North Western Muslim state appears to be the final destiny of the Muslims, at least of North West India. To India, it will offer peace and security due to internal balance of power.
- Islam is a people building force in India that has given moral consciousness and political identity to the people.

Importance

Iqbal's address is a forceful and logical presentation of the Muslim case in India. Why should they be treated as a political entity rather than a minority?

- Territorial adjustments will enable the Muslims to develop themselves in accordance with their ideals and serve the cause of Ummah.
- Redistribution of territory developed later on concept of Muslim homeland.
- He further expressed these ideas in LETTERS TO JINNAH from May 1936 to November 1937. He talked of a separate federation of Muslim provinces. The North Western India and Bengal can be considered as entitled to self-determination like other nations in India and outside. Shariah's development is impossible without a free Muslim state or states. He advised the Muslims to be above self-interest and devote themselves to Islam.
- In difficult times, Islam has saved the Muslims.
- Faith, culture and historical traditions are more important than patriotism.

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Lecture 9

Muslim Politics and Chaudhry Rahmat Ali

Intellectuals give lines of movement, leaders act upon and the masses prove good soldiers and this way nations accomplish their achievements. Rahmat Ali was one of the eminent scholars who made a significant contribution to the movement for the establishment of Pakistan. He was conscious of Muslim identity and outlined proposals for the partition of India for the sake of Muslims. He was the man who coined the name, PAKISTAN, for the Muslim state. When he first presented his proposal for a Muslim state, nobody took it seriously.

The Muslim intellectuals and leaders were concerned about the future of the Muslims in India. They ensured a secure future for Muslims. For this purpose they worked out various proposals for securing a homeland. Rahmat Ali becomes relevant here.

Biographical Sketch

Ch. Rahmat Ali was born in Hoshiarpur district in 1893. Traditionally he did his B.A. from Islamia College, Lahore. He did the private and government jobs for some time and then left for Cambridge University for higher education.

He was involved actively in the activities for the protection of rights of the Indian Muslims along with some other students at Cambridge University. His activism goes back to his student days in Lahore when he talked of separate state for Muslims of India.

Rahmat Ali's Views

He said that North Western areas are Muslim majority ares. We will not only keep these majorities but will turn them into a Muslim state. Muslims should get rid of Indianism, it is better for Muslims and Islam.

In his writing, NOW OR NEVER (January 1933), he proposed the name of Muslim state, PAKISTAN.

P	Punjab
A	Afghania NWFP
K	Kashmir
S	Sind
TAN	Balochistan

INDIA cannot be described as a state/country or home of single nation. This state did not exist as one political entity before the advent of the British. The Muslims are a distinct nation who has maintained its identity throughout. They are a separate nation. They have as much right to live as the Hindus. Pakistan should be separated from the rest of India. He further said that the conflict between Muslims and Hindus is not religious, sectarian or economic but an international. The Muslims are striving for survival; Hindus are trying for domination over the other nations living in the Sub-Continent particularly the Muslims.

He established the Pakistan National Movement in 1940. He began to talk about Bengal and Hyderabad as Muslim areas and separate states. Bang-i-Islam would comprise of Bengal and Assam and Osmanistan of Hyderabad Deccan.

He visited Pakistan in 1948 but the atmosphere of the motherland did not suit him and so he returned to Cambridge. He died there on 11 February 1951.

His Contribution

It is the ever-shining contribution of Rahmat Ali that he coined the name of the Muslim state. He said that being nation, the Indian Muslims deserved a separate homeland. He gave the future lines to the Muslims considering Islamic thoughts universal and true in comparison with the contemporary isms. When the Lahore Resolution was passed, it was instantly described as Pakistan Resolution. It, the division of India, was the solution of Hindu-Muslim question but Rahmat Ali proposed this long before the Lahore Resolution.

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Lecture 10

The Congress Ministries-- Policies towards Muslims

Topics:
1. Elections
2. Provincial Governments
3. Their Policies
4. Muslim Response

Government of India Act, 1935:
The Government of India Act, 1935 was not fully promulgated but the only provincial part was introduced in the country. Muslim League and the Congress criticized it but agreed to contest provincial elections.

The 1937 Elections:
The elections of 1937 were held with the restricted franchise and separate electorate. The Congress projected itself as an all-India force representing all religions and factions of the society. The Muslim League contested for the Muslim seats. There was a tough competition from the other Muslim organizations. The elections were completed in February 1937. The Congress got majorities in five provinces, Madras, U.P., C.P., Bihar, and Orissa. It emerged as the largest party in Bombay and won 704 out of 1585 general seats.
The Muslim League performed poorly in the elections and got only about 21 percent of Muslim seats without winning majority anywhere, Bengal, Punjab, NWFP, and Sind. It was mostly due to the organizational problems and opposition by local Muslim groups.

Formation of Provincial Governments:
In July 1937, Congress formed governments in 6 provinces. In NWFP, Khudai Khidmatgar and Congress formed a coalition government. In the Muslim majority provinces, the Muslim League could not form the governments. The Muslim League desired to be in government in the U.P. but the Congress consented to a conditional support:

1. Dissolve AIML Parliamentary Board
2. AIML members not to function as a separate group
3. AIML members to express allegiance to the Congress

Definitely the above-mentioned terms were a device to subvert the existence of the Muslim League. Therefore, no agreement was possible on this issue.

Policies of the Congress Governments: (July 1937-Nov. 1939)
First all Congress governments in the provinces launched anti-Muslim drive basically to exclude the ML and other Muslim organizations from the government making process. The Congress leaders had come to know that the ML had got roots in the masses. They started 'Muslim Mass Contact' movement to defame the ML in their favour. They were making cultural and educational policies that promoted the Hindu culture and symbols in the name of Indian culture. They introduced Banda-Mataram anthem from Annandmath in the institutions and offices etc. The Hindi language was given top most importance in their policies. Wardha Educational Scheme was to convert Muslims into Hindus through primary educational literature. Projection of Hindu heroes like Gandhi and distortion of Muslim history became their moral creed. They followed the policy of discrimination in services or new recruitment for jobs.

The Congress ministries adopted overall negative and cruel attitude, especially towards the Muslim activists. This unjust treatment compelled the Muslims to be disciplined in every sphere of life.

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Muslim Response:

The Muslims were well aware of the theocratic inclination of the Hindu people. They arranged a close monitoring of the government. They publicized their policies and raised the issues. The mobilization of Muslims on these matters required keen probe to collect the original facts of the Hindu atrocities.

The Pirpur Report:

On March 28, 1938, the Council of ML appointed an eight-member committee under the presidentship of Raja Syed Muhammad Mehdi of Pirpur that presented its report on, November 15, 1938. It tried to dig out the cruelties of the Congress ministries in seven provinces. The report took up the Congress support to the rival Muslim organizations, intimidation and threats to the pro-Muslim League people.

The Sharif Report, March 1939

The ML deputed Mr. Shareef with members to investigate the injustices under the dictatorial rule of the Hindus. This report mainly collected the facts, concentrating on ill treatment of the government with the Muslims in Bihar.

The Fazl-ul- Haq Report: (December 1939)

A. K. Fazl-ul-Haq published a pamphlet entitled Muslim Sufferings Under the Rule of Congress and made many alarming revelations e.g. forbidding of Azan, attacks in mosques, noisy processions of the Hindu scoundrels, forbidding of the cow-slaughter etc. This pamphlet responded the indictments by the Congress on the Muslims.

All the reports described the Congress government as an attempt to create 'Hindu Raj' that wanted to overwhelm the Muslim culture and their identity. It was a rigorous threat to the Muslims' interests.

Muslim League Activism:

The Muslim League highlighted the issues and mobilized the Muslims to counter them adequately. It reorganized the Muslim community to cope with the situation. The ML arranged its session at Lucknow in October 1937. Many prominent leaders like Fazlul Haq participated in the session while Sikander Hayat and Saadullah announced their support to the ML.

The Muslim leaders shed a sharp criticism on the Congress policies. They protested against the reduction of status of Urdu and other Muslim related issues. They created realization, amongst the Muslims, of what can happen under the Congress rule and urged for serious thinking about the future political and constitutional arrangements. They unearthed the real objectives of the Congress and urged the need of unity among the Muslims under the banner of Muslim League.

The Second World War (September 1939) proved blessing for the Muslims in a sense that the Congress Ministries resigned in November 1939. The Muslims observed Day of Deliverance on December 22, 1939.

The ML redefined its position during the World War II. They expressed their enthusiasm that no constitution to be enforced without the consent of the Muslims. They eradicated their organizational weaknesses and refined their objectives keeping the experiences of the Congress ministries.

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Lecture 11

The Lahore Resolution, 1940

The experience of Congress Rule compelled the Muslims to launch the movement for separate homeland. The Hindus made them realize that Hindu government would mean an anti-Muslim rule in India. The Muslims' disappointment from the Congress leadership decided to open a new phase of history. Quaid-i-Azam's article in *Time and Tide* concluded that Muslims are a nation. No Constitution can be enforced by ignoring Muslims. His comments on March 13, 1940 are remarkable: "If some satisfactory settlement cannot be found for Muslims in united India, the Muslim will have to demand for division of the country."

The Lahore Resolution:

The Muslim League held its annual session at Lahore on 22-24 March 1940. The Lahore Resolution was moved by Maulvi Fazlul Haq and seconded by Ch. Khaliquzzaman that finally approved on March 24, 1940. Jinnah rightly expressed his valuable remarks about the political circumstances of India and the Muslims stand. He said:

> "Indian problem is not communal but international. No Constitution can work without recognizing this reality. Muslims of India will not accept a constitution that establishes a government of the Hindu majority on them. If Hindus and Muslims are placed under one democratic system, this would mean Hindu Raj."

Text of the Resolution:

- They decided that the Federal system under Government of India Act, 1935 was not acceptable for the Muslims.
- No revised constitutional plan would be acceptable unless it was framed with their approval and consent.
- Adjacent units where Muslims are in a majority, as in Northwest and East, should be constituted as Independent States where the constituent units will be autonomous and sovereign.
- Protection of minorities would be given priority.

Significance:

This Resolution did not specify any demarcation of the territory but it defined the future plan of struggle for the establishment of the Muslims states (later the word 'states' was replaced by 'state' in 1946) in the Northwestern and Eastern areas where the Muslims were in overwhelming majority. It also intended to give importance to the autonomy of the states. There was no use of the word Pakistan but Pakistan was kernel of the Resolution.

Later Developments:

The World War II started in 1939 that required heavily men powered battlefield. The British who always believe in bargaining announced an offer in August 1940:

1. Expansion of the Viceroy's Executive Coucil and the setting up of National Defence Council
2. Special importance to the views of minorities in the revision of the constitution.
3. Power could not be transferred under a system that will not be acceptable to large and powerful minorities in India.
4. Dominion Status: the ultimate goal
5. Cooperation of Indians for the war

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Congress rejected it and started Non-Cooperation movement 1940-41. Lahore Resolution remained the ultimate goal for the Muslim Leagues.

The Cripps Mission, March 1942

The constitutional proposals for seeking Indian cooperation for war efforts:

1. Dominion status
2. Indian constitutional body to frame constitution
3. Princely states would be represented.

The Cripps Mission negotiated with Indian leaders and issued the proposals. The Congress rejected the proposals and demanded that a responsible government would be set up immediately after the war. The defense affairs should be under the Indian control. The Muslim League also rejected the proposals and repeated its stand that the Muslims could not live in Indian Union.

The Hindus started Quit India Movement in August 1942 seeing British in trouble. The Muslim League stayed aloof and responded by saying that divide and quit India.

Gandhi-Jinnah Talks, September 1944

MK Gandhi did not accept the Hindus and Muslims as Two Nations and emphasized on the freedom of united India. Jinnah told him that the Muslims could never budge even a single inch from their ideological and constitutional demand.

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Lecture 12

Major Political Developments in 1945-46

Political Situation in 1945

During the World War II, the British sought Indian military cooperation and offered political and constitutional changes after the war. They desired to expand the Viceroy's Executive Council.
Lord Wavell arranged Simla Conference during June-July 1945 in which all the political parties participated by sending their representatives. Jinnah and Abul Kalam Azad represented the Muslim League (ML) and the Congress respectively. Maulana Azad claimed Congress as sole representative party of all the peoples living in India. Jinnah considered the ML the only political party of the Indian Muslims and on this the ML had right to appoint Muslim members to the Council. This issue could not be dissolved and the differences between the ML and the Congress increased.

The Elections, 1945-46

Lord Wavell announced elections in August 1945. He visited England and after consultations he presented new political steps:

1. Self government with the cooperation of Indian leaders.
2. New Elections in the winter.
3. Provincial governments in the provinces
4. Constitutional Assembly to be convened. The basis of constitution making was to be settled.
5. Executive Council to be set up. It will have representation of major parties.

Elections:

The ML's stand was very clear i.e. the ML is a sole representative of Muslims and Pakistan is its ultimate goal. The ML launched the massive campaign for these destinations. The Islamic slogans became massively popular. In this way, the struggle for the establishment of Pakistan was motivated on the basis of Islam. The role of students was also prominent during the political drive. On the other hand, the Congress put the slogan of independence from British in the shape of undivided India before the Hindu nation. They proclaimed that their stand was for all the Indian communities.
In December 1945 the elections of Central Legislature were held and the ML won all 30 Muslim seats. The Congress won 57 seats.

Provincial Elections: February 1946

In the provincial elections, the ML won most of the Muslim seats:

1. Punjab: 79 out of 86 Muslim seats
2. Bengal 113 out of 119 Muslim seats
3. Sindh 28 out of 35 Muslim seats
4. NWFP 17 out of 38 Muslim seats

The ML also showed an impressive performance in the Muslim minority provinces. The ML formed its ministry in Sind, Khudai Khidmatgar (Dr. Khan) in NWFP, coalition government by ML in Bengal, and Unionist (20), Akalis and the Congress in Punjab (Khizr Hayat Tiwana).

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The Cabinet Mission: March 1946

The British Labour government sent a mission to formulate some acceptable constitutional settlement. Sir Pethick Lawrence, Stafford Cripps and A. V. Alexander deliberated with the governors, members of the Executive Council and then the Indian political leaders on different proposals. Maulana Azad as the president of the Congress stressed to establish federal government and Jinnah repeated the Two Nation Theory as a universal reality. On April 19, 1946, all the newly elected Muslim members pledged in the Delhi Convention to shatter the Hindu dream of united India. In the second Simla Conference (May 15, 1946) the ML wished two legislative assemblies while anti-ML political parties favoured strong centre.

Recommendations of the Cabinet Mission: May 1946

Indian Union comprising British India and princely states.

1. Centre to deal with foreign affairs, defence, communication, taxation.
2. Rest of the subjects with provinces.
3. There will be a legislature and executive comprising representatives of provinces and states.
4. No legislation on communal affairs if the majority of the two communities are not present and voting in favour.
5. Provinces will be divided into three groups:
   A: Hindu majority provinces e.g. UP, CP, Madras, Bombay, Bihar, Orissa.
   B: Muslim majority provinces in NW e.g. Punjab, NWFP, Balochistan and Sindh.
   C: Bengal and Assam.
6. Each group could decide what to be managed jointly and what should be managed by provinces themselves. They could decide if the group desired to frame constitution.
7. After ten years, a province by a vote of its legislature could ask for review of relationship with the Union. It implied that a group or province could quit the Indian Union.
8. CA to be elected by the elected members of the provincial assemblies. Seats to be divided into three categories: General, Muslim, and Sikh on the basis of population in provinces.

Separate Electorate.

9. Interim Government to be set up.

Muslim League Reaction:

The Muslim League reiterated its demand for Pakistan. It accepted the plan for two reasons: Basis and foundation of Pakistan was in the compulsory grouping and the right to ask for review.

Congress Reaction:

The Congress was critical of groupings and right to ask for review of constitutional relationship. It agreed to contest elections for the CA but declined to be bound by the proposals of the Cabinet Plan. The nonsensical stand of the Congress was that they were 'free to make any change in the proposal.' Definitely the ML was alarmed by the Congress' intentions.

Interim Government:

Representation in the Interim Government became controversial on the question of who would nominate the Muslims representative. To put pressure on the government, the Congress refused to join the Interim Government and the British postponed it. The ML was disappointed by the British behaviour and decided to review its acceptance of the Cabinet Mission Plan.

Direct Action Day: August 16, 1946

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The ML's timely coercive political strategy brought the Congress on table with the British. The Interim Government was formed under Nehru on September 2, 1946 and the ML stayed away. They joined it on October 25, 1946:

- Liaquat Ali Khan
- Sardar Abdur-Rab Nishtar
- Raja Gazanfar Ali
- Chundrigar
- J. N. Mandal

There were a number of problems of smooth functioning of the Interim Government due to the Muslim-Hindu differences.

Constituent Assembly:

CA (Constituent Assembly) was elected by the provincial assemblies in July 1946. ML won all Muslim seats except 5 while the Congress won all general seats except 9. The first session was held on December 9, 1946 and the ML boycotted it because the Congress wanted to frame the Constitution for United India. The ML demanded two constituent assemblies and showed its firmness on the demand for Pakistan. By the end of 1946, it had become clear that a constitution for united India could not be forced.

The Cabinet Mission Plan offered a possibility of a loose federation with an option to the Muslims to separate after ten years.

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Lecture 13

Towards Independence, 1947

Civil Disobedience Movements:

The ML decided to confront the political situation through the protesting means for the first time. The Congress had been working on these lines but the Muslim leaders considered politics a gentle man's game. Now when the British government joined hands to oust the Muslims from the constitutional and moral position they decided to launch 'Direct Action.' The ML revised its decision rejecting the Cabinet Mission Plan. Direct Action Day (August 16, 1946) was a protest against the British policy of injustice towards the Muslims. The Hindu attacks transmuted the course of the protests and concluded huge life casualties. The Calcutta massacre convinced Lord Wavell to bridge the ML-Congress to some settlement.

Wavell tried to prepare Nehru and Gandhi to coordinate the ML. It was imperative to do because Muslim League (95% seats) refused to join the Legislative Assembly. Congress rejected all the possible offers even from the government. Churchill snubbed the Labour government on the Calcutta riots and the Viceroy requested Jinnah to join the Interim Government that Jinnah accepted. On October 25, 1946, the members of the Executive Council were finalized.

Punjab:

ML had bagged 79 out of 86 seats in Punjab but Khizr Hayat Tiwana formed his government with the help of Hindu and Sikh members (Unionist). The ML confronted this conspiracy and protested to restore the people's will (Feb. 1947). The Punjab government dealt with the situation cruelly. Here the Muslim women played very outstanding role in the ML struggle. The Khizr Government resigned and Governor's rule was imposed on March 2, 1947.

Assam:

Maulana Bhashani launched a movement against the ejection of Muslim peasants.

Announcement of February 20, 1947:

Prime Minister Attlee declared by June 1948, all power would be given to representatives. If no constitution was framed, the British Government will think whether the powers be given to provincial governments. In some areas or any other alternative that is in the interest of Indians. Mountbatten was appointed new Viceroy of India.

Mountbatten as Viceroy:

Mountbatten arrived in Delhi on March 22, 1947. The basic objective of his appointment was to wind up British rule. He arranged dialogue with the Indian leaders. Then he visited England for deliberations for new plan.

3rd June Plan:

- The British will not impose a constitution but the Constituent Assembly will frame a constitution.
- The constitution will not be imposed on the areas that do not accept it. Opinion will be sought from them if they want to set up a separate CA (Constituent Assembly).
- Punjab & Bengal Assemblies will meet in two parts, members from Muslim majority areas and other districts separately to decide if the province be partitioned.
- If any part decides for partition, each group will decide which CA they wish to join.
- Sind Assembly will decide about joining either side.
- Referendum in NWFP
- Balochistan: appropriate method
- Boundary Commission for Punjab and Bengal
- Princely states to decide for themselves keeping in view their geographical contiguity.

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Indian Independence Act July 1947:
To give legal shape to the June 3 Plan, the Indian Independence Act was promulgated (July 1947).

- Two independent dominion states on August 15, 1947
- Their legislatures will have all powers to make laws for the respective states.
- Government of India Act, 1935, to be interim constitution subject to changes due to Indian Independence Act 1947.
- Governor Generals can amend the Interim Constitution until March 31, 1948.
- All arrangements between the British and the Princely states to come to an end and they will have new arrangements with the new states.
- British King will no longer use the title of the King of India

The Partition Process:

Punjab
The Muslim members favoured joining new CA. the non-Muslims voted for partition and joining India.
Bengal
Muslims favoured joining new CA while non-Muslims favoured partitioning and joining India.
Sindh
The Assembly voted to join Pakistan.
NWFP
Referendum decided in favour of Pakistan while Dr. Khan's govt. boycotted it after it became clear that it would lose.
Balochistan
Shahi Jirga and the non-official members of Quetta Municipal Committee opted for Pakistan.
Sylhet
Referendum was held to join East Bengal for joining Pakistan.

Governor General's Issue:
Mountbatten wanted to be joint GG (Governor General) of India and Pakistan while ML decided to appoint Jinnah as the first Governor General of Pakistan in July.

Transfer of Power:
1st meeting of the Constituent Assembly was held on August 11, 1947 and the ceremonies on August 14. Radio announcement was made at midnight 14-15 Aug. Oath taking ceremony for GG (Governor General) and PM (Prime Minister) was held on August 15 1947.

Boundaries determined on August 17:
Boundaries Commission award declared many controversial decisions about certain areas like Gurdaspur, Zira Tehsil etc, but the ML accepted it with protest.

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Lecture 14

Constitutional Development in British India

Following acts were introduced by the British government in India.

1. Indian Councils Act, 1861
2. Indian Councils Act, 1892
3. Government of India Act, 1909
4. Government of India Act, 1919
5. Government of India Act, 1935

End of East India Company's Rule:
On August 2, 1858 British Parliament passed a law for complete takeover of all rights of the East India Company over India. Post of Secretary of State for India was created through the cabinet. The Secretary of State for India was empowered about government and revenues of India.
On November 1, 1858 Queen Victoria issued a proclamation for the assumption of control of India by the British Crown. Lord Canning, Governor General of India was given the title of "Viceroy." He continued in office but not as the Company's representative but direct representative of British Crown. Moreover armies of the Company came under British Control.

Indian Council Act, 1861
This act was the first legislation by the British government in India. Before that laws were promulgated by the East India Company.
According to this act:

Governor General could assign special tasks to any members of the Executive Council.
Important matters were to be discussed with the Governor General. Some important subjects were kept directly under the Viceroy, e. g., Foreign Department.
Membership of the Council was raised: 6 to 12. Half of them were to be non-officials, nominated for two years.
The Council had limited legislative powers.
In Madras and Bombay Councils approval of the Governor General (GG) and Governor was needed. This act provided Indian representation by nomination.

Indian Council Act of 1892
By this act:
Size of Legislative Council increased.
In Central Legislative Council the membership was increased: 10 to 16 members.
At Provincial level representation was increased. In Madras & Bombay 8 to 12, Bengal 12 to 20.
Limited powers were given to the legislatures. Questions could be asked.
Nominal elections through special interests were allowed. GG and the British government made these appointments.

Government of India Act, 1909 (Minto-Morley Reforms)
This act was another step towards giving Indians more representation in the Government.
This act provided,

- Expansion of Legislative Councils
- Central: Additional members up to 60
- But official majority remained there.
- Provincial: Size varied in different provinces.
- Bombay, Madras, Bengal, UP: 50
- Non-official majority
- Not all the members were elected.
- Powers of the Councils were increased. Now

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- Budget could be discussed. Members were allowed to present Resolutions and put up questions.
- Executive Councils were formed for Bombay, Madras and Bengal and Lt. Governor Provinces.
- Elections were to be held by University Senate, District Boards, Municipal Committees, Zamindars, and Chambers of Commerce.
- Separate Electorate was accepted for minorities.

Government of India Act, 1919 (Montagu-Chelmsford Reforms)

In the background of some significant developments between 1909-1919 like World War I- 1914-1918, political activity during Tehrik-i-Khilaphat, change in Muslim League objectives, Lucknow Pact 1916 etc., the British government announced that gradual induction of Indians in all branches of government would be done. Gradual introduction of responsible government would be done. Commissioned ranks of Army would be given to the Indians.
Mr. Montagu, Secretary of State visited India from November 1917 to April 1918 and discussed the constitutional matters with Viceroy Lord Chelmsford and the Indian political leaders. The outcome was the government of India Act 1919.

Salient Features, Government of India Act 1919
This act provided a bicameral legislature at the Centre, which consisted of two houses.
One was the Council of State with a membership of 60, out of which 34 were to be elected and 26 nominated official & nonofficial members. The Council's tenure was fixed at 5 years.
Legislative Assembly was consisted of 145 members, out of whom 105 were elected and the rest would be nominated.
Direct elections were introduced with limited franchise on the basis of property, tax paying, previous experience of legislative councils, university senate, district councils, etc.
Separate Electorate for minorities.
Limited law making powers were assigned to the Legislature but for certain categories prior permission was required. It had no control over defense, foreign policy, budget etc. Legislature could refuse grants but GG could restore them.
Questions, Resolutions, Adjournment Motions were allowed.
G.G. remained a powerful office with all the executive, legislative powers with a nominated Executive Council.
Two lists of subjects were given in the act, one was Central and the other was Provincial. Centre had overriding powers.

Provincial Legislative Councils
Membership increased. 70 percent were elected. They were having limited powers. They could reject budget but GG could restore it.

Diarchy System in the Provinces
The act introduced DIARCHY system in the provinces. According to the new arrangement subjects were divided into two categories i.e., Reserved subjects and Transferred subjects. Reserved subjects included judiciary, canal, land revenue, Finance, press, power, etc.
Transferred subjects included Local govt. education, public health. In case of a dispute, if something belonged to reserved or transferred side, the Governor was entitled to make the final decision.
Limited Responsible Government at the provincial level was introduced. The system of Diarchy was complicated.
The continuous tussle between the elected and nominated members created fear of breakdown of administration. GG had Control on key departments. Elective elements became strong in the legislatures.

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Government of India Act, 1935

It was the most important and most comprehensive legislation introduced by the British Government in India. It was gradually formulated starting with the Simon Commission, Round Table Conferences, White paper (1933) and J.S.C. it was a lengthy document passed by the parliament in July 1935 and got Royal assent in August 1935.

Salient Features

It provided a Federal System with a centre, 11 Governor Provinces, 6 Chief Commissioner Provinces and the states willing to join it.

Three lists of subjects were given with a powerful centre. Federal list had Defense, Postal srevices, External affairs, Coinage and Communication. Provincial list included education, police, Local self-government, justice, agriculture, public service, fisheries and forests. The concurrent list included criminal law, civil marriage, divorce, registration, bankruptcy, factories and succession.

Two houses of Central Legislature:

i. Council of State comprised of 260 members, out of which 156 were from British provinces and 104 from Indian States.

Method of election was indirect. Communal representation was also secured.

ii. Federal Assembly was lower house consisted of 375 members. Out of which 250 represented

British provinces and 125 from Indian States.

They were elected by provincial legislatures on the principle of separate electorate.

States were to nominate their members.

Limited Powers were given to legislature:

80 percent of budget was above their vote.

They could do law making for two lists but GG could turn down or refuse the bill keeping it for consideration of the British Government.

This constitution provided a Powerful GG: Executive Chief having powers of

- Act on advice
- Independent Judgment
- Discretion
- Emergency powers
- Ordinances
- Power to rule provinces directly

Provincial Governments:

Governors enjoy the powers like the GG in the Centre.

- Diarchy abolished in provinces.
- Responsible government was formed.
- Provincial legislatures not unicameral. Act provided for bicameral legislatures in six provinces and unicameral in five provinces.
- Franchise extended but still restricted on the basis of land revenue Rs. 5, Non-transferable property of Rs. 60, Education: Primary.
- Federal Court and High Courts were formed under the act.
- Burma was separated from India.
- Sindh was separated from Bombay.

Comments:

- Federal part of the act was not introduced.
- Provincial part introduced in 1937.
- Provincial autonomy was provided.
- Elected governments were formed in provinces

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- A strong centre was maintained.
- This act expanded electorate.
- Indian government under this act had no control over defense.
- Indian legislature could not amend it.
- Federal legislature elected indirectly

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Lecture 15

The Problems of the New State

The attainment of independence brought an end to one phase of the struggle and marked the beginning of a new one for setting up and running a viable, stable and prosperous state. Pakistan began its independent life under very difficult and unfavorable circumstances. Pakistan faced serious problems in the initial stages.

1. **New Administration**
2. **Division of Assets**
3. **Integration of Princely States**
4. **Communal Riots and Arrival of Refugees**
5. **Canal water and trade issues**

1: New Administration

The shortage of trained human power especially senior officers was a serious problem in the setting up of federal government in Karachi. Most of them had migrated to India. There was a shortage of office space, equipment and furniture. This disturbed the direct connections between the federal government and provincial governments. On the other hand, the provincial governments were overburdened that needed very accurate connection between the centre and the provinces to solve the problems of the Muslim refugees who had nothing to eat, drink, wear, rest, etc. To counter the critical situation, the official system should have been efficient but due to the lack of all these facilities the administrative authorities were painfully facing difficulties.

2: Division of Assets

The Indian **government** was not cooperative for transfer of record and equipment to Pakistan. The civil administration was not handing over the promised financial, military, and other shares that created mountainous hurdles to eradicate the pains and miseries of the refugees.

Financial Assets

The full financial share of Pakistan was not transferred. Initially rupees 200 million were transferred that were not sufficient to meet the expenditures of the newly born state. The Indian government was so reactionary that it tried its level best to block these funds to suffocate the newly born Muslim state as they expected foolishly that Pakistan would collapse and rejoin India soon after its existence. They did not release the remaining funds until Gandhi's threat of *marn bert* (fast until death). Under this pressure, more funds were sent in early 1948 but no installment was later paid.

Military's Division

As far as the problem in dividing man power there was no serious setback because the division was not in the hand of third person and Muslims were free to come to their dreamland, Pakistan. Anyhow, their shifting was slow and insecure. There were obstacles in the Pakistan's share of weapons, equipment, and stores. The broken and damaged stuff was sent by India. Pakistan did not get any ordinance factory. Reorganization of the Armed Forces was another tough job and the there was no army officer up to the rank of colonel. The shortage of experienced officers convinced British officers to continue their services. This also accelerated undue promotion in the military services to fill the gap.

3: Integration of Princely States

There were over 560 princely states in India on the verge of the partition of India. About 500 states had joined India before August 15 because of the motivation by V. P. Menon and Mountbatten. The princes were inclined to honour every gesture of the British representative so

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they conceded what the member of the Royal family (Mountbatten) wished. The Hindu-British conspiracy blocked states to join Pakistan.

Junagadh
It was a small state with access to sea having about 7 lakh population and 3377 mile area. The ruler was Muslim while the majority of its population was Hindu. The ruler decided to accede to Pakistan and Pakistan also accepted the accession. In November 1947, the Indian troops entered the state and took its control. The referendum favoured India.

Hyderabad
It was geographically big and financially a rich state. Its ruler was Muslim and majority population was Hindu. It was surrounded by India from all sides. The Nizam wanted to stay independent. Mountbatten discouraged him and signed **Standstill Agreement**. But India built pressure on the Nizam by sending its troops in September 1948 claiming that serious law and order situation had developed. The state was integrated in India.

Kashmir
The most important state was Kashmir naturally connected with Pakistan. Its ruler was Hindu while population was Muslim. The population inclined towards Pakistan but the Hindu ruler declared to join India. The Kashmiri people revolt against the ruler in Poonch area and soon it became widespread. The ruler sought Indian support. India demanded accession. On October 27, 1947 Indian troops landed in Srinagar. The people continued their struggle for independence and India promised to finally settle the matter with reference to the people under the UN Resolutions.

4: Communal Riots and Refugees
The Communal riots occurred earlier in August 1946. The killing of Muslims in Indian areas forced them to leave India. The Sikhs and Hindus attacked the refugee caravans and trains. There were organized gangs to kill the Muslims. The refugee problem created critical condition in the border areas. The massive migration proved serious economic and humanitarian problems for the new state. The military was asked to help cope with the refugee problem.

5: Canal Water Problem
The major rivers flow from Kashmir and some canal heads located in India. In 1948, India cut off water to some canal that was a serious threat to agriculture in West Pakistan. The Indian plans to build water storage on the rivers that are vital for Pakistan's economy worsened the situation. It also showed the traditional anti-Muslim attitude. The World Bank settled the problem in September 1960 (Indus Water Treaty).

6: Trade Problem and the Economy
India devalued its currency in 1949 but Pakistan refused to do so. It stopped trade that adversely affected Pakistan's economy as it depended on trade from India. Pakistan had inherited a weak economy and poor industrial base. The beginning years of Pakistan were troubled and difficult due to the India's non-helpful policy and the war in Kashmir. It had profound impact on Pakistan's worldview and its relations with India. Pakistan strived for its survival and security. Many Indians and the British predicted the collapse of Pakistan. They were of the opinion that very soon the Muslims would realize their blunder. They would be forced by the circumstances to go back to join India. But PAKISTAN, by the grace of Almighty Allah, was able to meet the challenge even with its problems.

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Lecture 16

The Objectives Resolution (1949)

The Objectives Resolution was the first constitutional document that proved to be the 'foundation' of the constitutional developments in Pakistan. It provided parameters and sublime principles to the legislators. It made the constitution-making process easy task setting some particular objectives before them that would be acceptable to the people of Pakistan who had suffered a lot under the Hindu-dominated majority. The Resolution was moved by Liaquat Ali Khan, the then Prime Minister of the Islamic Republic of Pakistan, and approved on March 12, 1949.

The Constituent Assembly (1947-54)

The first Constituent Assembly came into existence under Indian Independence Act 1947. The elections were held in July 1946 to decide the destiny of the All India Muslim League (AIML)'s claim that it is the only representative party of the Indian Muslims that desire separate homeland, Pakistan. The members from the districts that became part of Pakistan were declared members of the Constituent Assembly. The number of such members was 69. It increased to 79 after the 1947 when some states joined Pakistan and then increase in the population. There were two major parties, Muslim League and Congress in the Assembly at that time. This Assembly had dual functions to perform.

Features of the Objectives Resolution

1. Sovereignty over the entire universe belongs to Almighty Allah alone.
2. The authority which He has delegated to the state of Pakistan through its people for being exercised within the limits prescribed by Him is a sacred trust.
3. Constitution will be framed for sovereign, independent state of Pakistan.
4. The state shall exercise its power through the representatives of the people.
5. Principles of Democracy, freedom, equality, tolerance and social justice as enunciated by Islam will be fully observed.
6. Muslims shall be enabled to organize their lives in accordance with the teachings and requirements of Islam as set out in the Quran and the Sunnah.
7. Minorities to have freedom to freely profess and practice their religions and develop their cultures.
8. Provisions for safeguarding the legitimate interests of minorities, backward and depressed classes.
9. Pakistan shall be a Federation with autonomous units. State's sovereignty and territorial integrity will be protected.
10. People of Pakistan should prosper and attain their rightful place in the comity of nations and make contribution towards international peace and progress and happiness of humanity.

Explanation and Importance

The Resolution declared the sovereignty of God as the distinctive political philosophy. The Western democracy gives the notion that sovereignty lies in the people but this Resolution is important having the concept of the sovereignty of God. It clarified that people would utilize powers gifted by God so they would have to work within the limits prescribed by Him. The exercise of the powers is a sacred trust. The representatives of the people of Pakistan will manage the affairs under the universal ideology of democracy, freedom, equality, tolerance, and social justice with the spirit of an Islamic framework.

The Resolution pledged to give the due respect and rights to the minorities, backward and depressed classes in the benign society of Pakistan. Their rights, interests, religion and culture were not confuted.

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It's important that the Resolution promised the federating units for due powers, autonomy and territorial integrity.

Objections by Non-Muslims

The major objection by the Non-Muslims was that the government was trying to mix the religion and politics that was against the spirit of democracy. The non-Muslims objected on the 'Sovereignty of Allah' and minorities' rights, saying it would promote inequality in the society. They were also of view that Shariah was not adequate for the modern time. They feared that it would encourage the religious extremists to work for the establishment of a 'theocratic state.'

Importance

The Objectives Resolution is a basic and primary document of the constitutional history of Pakistan. It is a framework that provides mechanism to achieve goals for a better life of the people of Pakistan. It's important that it embraces centrality of Islam to polity sustaining their links with the pre-independence period. The AIML leaders were modernist Muslims not in favour of an orthodox religious state. Therefore, they selected the middle way abiding by the Islamic laws and the international democratic values. The Resolution remained 'Preamble of all the constitutions due to its importance.

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